

The Court being thus divided, and there being a former rule to stay judgment, no judgment could be entered. *Et per Cur.* If the Court had been divided on the first motion, the plaintiff might have entered judgment; but now this rule must stand or be discharged, and discharged it cannot be (a), because the Court is equally divided (b).

† Holt C.J. and Rokesby J. denied this case of 1 Leon. 236, to be law.

(a) 1 Ld. Raym. 271. 3 Mod. 156.

(b) It appears at the end of the report of this case, in 12 Mod. 262, that in the case of *Philips and Ryand*, E. 11 G. 1, the Chief Justice said that judgment was reversed by the opinion of all the Judges in the Exchequer-Chamber; but at the end of the report in Ld. Raym. it is stated that the case was argued before all the Justices of the Common Pleas and Barons of the Exchequer at Serjeants Inn, and they were all of opinion for the plaintiff that the action well lay.

8. LANE *versus* COTTON & AL.

[Pasch. 12 Will. 3, B. R. Intratur Pasch. 10 Will. 3, Rot. 403.
1 Ld. Raym. 646. Comyns 100.]

[See S. C. 1 Ld. Raym. 646 (with note).]

Case against the postmasters-general for Exchequer bills lost out of a letter delivered at the post office at London. *Vide* the entry in this case. 2 Mod. Intr. 108. *Post*, 143, S. C. 5 Mod. 445. Carth. 487. Rep. A. Q. 12. Cases B. R. 472. Holt 582.

Sir Robert Cotton and Sir Thomas Frankland were constituted postmasters-general by letters patent, according to the stat. 12 C. 2, 35, for erecting the post-office; and in the patent there was a power to make deputies, and appoint servants at their will and pleasure, and to take security of them in the name and to the use of the King; and also that the defendants should obey such orders as from time to time should come from the King, and as to the revenue should obey the orders of the Treasury. Farther, the King grants to them that they should not be chargeable for their officers, but only for their own voluntary default or misbehaviour; and this is granted with a fee of 1500l. per annum. The plaintiff Lane, having Exchequer bills, inclosed them in a letter directed to one Jones at Worcester, and delivered it at the post-office at London into the hands of one Breeze, who was appointed by the defendants to receive the letters, and had a salary. The letter was opened in the office by a person unknown, and the Exchequer-bills taken away; and for this an action of the case was brought against the defendants, and on the general issue, the special matter found as is above mentioned.

Turton, Gould, and Powys held the action lay not. 1. Because the office is for intelligence, and not for insurance. 2. Because Breeze is an officer, and he is liable. 3. It is impossible the postmaster-general, who is to execute this office in such distant places, at home and abroad, and at all times, by so many several hands, should be able to secure every thing. 4. Because Exchequer-bills are new things, and this office is not a conveyance for treasure.

Holt, C.J. *contra*. He considered this as a letter lost in the office, and not upon the road; and held the postmaster-general was liable, because the care of the whole is committed to him, and the rest are but his deputies: for, first, the law makes the officer, whoever he be, responsible of consequence both for himself and his deputy, as the marshal or warden for a prisoner, or the sheriff for goods taken in execution, for which he is liable upon an *extendi facias* on the statute, as well as a *levari facias*, which is at common law; or for a prisoner in execution in debt, which is by the stat. of the 25 E. 3, c. 17, as well as in trespass *vi & armis*, which is an execution at common law: and this shews that the officer is in consequence liable, whether he become entrusted by common law or by statute: and there is no need of a contract, for the law makes him answerable. 2dly, He has a reward, which is the reason in the case of innkeepers, hoymen, &c. who are bound to keep safely, and answer all neglects of those that act under them, and so they would be, though they should expressly